LAWS2100 Jurisprudence
LAWS8005 Theories of Law and Justice

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Week 4 – Natural Law Theories



The Natural Law Tradition

- Natural law theories dispute the (positivist) claim that law and morality are *conceptually separable*
  - For legal positivists, the existence of law is simply a matter of social facts/practices
- **The key idea in the natural law tradition is that the law has an *essentially moral dimension***
  - For natural law theorists, law is a matter of social facts + conformity to certain moral standards (form and/or content)
  - Procedural natural law theories – see, e.g., Lon Fuller's theory
  - Substantive natural law theories – see, e.g., John Finnis' theory

Natural Law Theory vs Legal Positivism?

Legal theorists who present or understand their theories as “positivist”, or as instances of “legal positivism”, take their theories to be opposed to, or at least clearly distinct from, natural law theory. **Natural law theorists, on the other hand, did not conceive their theories in opposition to, or even as distinct from, legal positivism** […]. The term “positive law” was put into wide philosophical circulation first by Aquinas, and **natural law theories of his kind share, or at least make no effort to deny, many or virtually all “positivist” theses** – except of course the bare thesis that natural law theories are mistaken, or the thesis that a norm is the content of an act of will. **Natural law theory accepts that law can be considered and spoken of *both* as a sheer social fact of power and practice, *and* as a set of reasons for action that can be and often are sound as reasons and therefore normative for reasonable people addressed by them**.

John Finnis, "Natural Law Theories", *The Stanford Encyclopedia of Philosophy*

Hart on Legal Positivism

"Here we shall take Legal Positivism to mean the simple contention that **it is in no sense a necessary truth that laws reproduce or satisfy certain demands of morality**, though in fact they have often done so."

(H.L.A. Hart, *The Concept of Law*, OUP, 1994 [1961], pp. 185-186)

My account is *descriptive* in that it is **morally neutral and has no justificatory aims**: it does not seek to justify or commend on moral or other grounds the forms and structures which appear in my general account of law, though a clear understanding of these is, I think, an important preliminary to any useful moral criticism of law.

(H.L.A. Hart, *The Concept of Law*, OUP, 1994 [1961], p. 240)

The utilitarian tradition in jurisprudence

According to Hart, the utilitarian tradition in jurisprudence has defended the following three doctrines:

1. **the separation between law and morals**
2. the important truth that a purely analytical study of legal concepts, a study of the meaning of the distinctive vocabulary of the law, was as vital to our understanding of the nature of law as historical or sociological studies (though of course it could not supplant them)
3. the famous imperative theory of law

(1), (2), and (3) are separate doctrines/claims – **they are not a package**

Imperative Theory vs. Natural Law Tradition

Hart discusses some key claims associated with the natural law tradition in Chapter VIII (Justice and Morality) and Chapter IX (Laws and Morals) of *The Concept of Law*

"We must now turn our attention to the claim which, in the perennial discussion of the 'essence' or the 'nature' or 'the definition' of law, has been most frequently opposed to the simple imperative theory which we have found inadequate. **This is the general contention that between law and morality there is a connection which is in some sense 'necessary'**, and that it is this which deserves to be **taken as central, in any attempt to analyse or elucidate the notion of law**."

H.L.A. Hart, *The Concept of Law* (OUP, 3rd ed, 2012) 155

→ What are states without justice but robber-bands enlarged?
(Augustine of Hippo)

The necessary connection between law and morality (NCLM)

- NCLM in the Thomist tradition of Natural Law:

➢ **There are certain principles of true morality or justice**, discoverable by human reason without the aid of revelation (even though they have a divine origin);

AND

➢ **Man-made laws which conflict with these principles are not valid law** (*Lex iniusta non est lex*)

- A different interpretation of NCLM:

➢ **For a legal system to exist** there must be a widely diffused, though not necessarily universal, recognition of **a moral obligation to obey the law** (even though this may be overridden in particular cases by a stronger moral obligation not to obey particular morally iniquitous laws)

Three long-entangled issues

1. The first issue concerns the distinction, within the general sphere of morality, of the specific idea of justice and the special features which account for its peculiarly intimate connection with law

- "…there is one idea, that of justice which seems to unite both fields [law and morality]: it is both a virtue specially appropriate to law and the most legal of the virtues. We think and talk of 'justice *according to* law' and yet also of the justice or injustice *of* the laws." (H.L.A. Hart, *The Concept of Law*, OUP, 1994 [1961], p. 7)

2. The characteristics which distinguish moral rules and principles from all other forms of social rule/standards of conduct

3. **The many different senses and ways in which legal rules and morals may be said to be related (Chapter IX of *The Concept of Law*)**

Hart on the "minimum content of natural law"

- According to Hart, rules restricting the use of violence and requiring respect for property and promises constitute a 'minimum content' of Natural Law underlying both positive law and social morality.
- **The simple truisms we have discussed not only disclose the core of good sense in the doctrine of Natural Law**. […] We can say, given the setting of natural facts and aims, which make sanctions both possible and necessary in a municipal system, that this is a *natural necessity*; and some such phrase is needed also to convey the status of the **minimum forms of protection for persons, property, and promises which are similarly indispensable features of municipal law**. It is in this form that we should reply to the positivist thesis that 'law may have any content'. (CL, p. 199)
- This "empirical version" of natural law is based on Hobbes (*Leviathan*, chaps. 14 and 15) and Hume (*Treatise of Human Nature*, Book III, part 2; esp. ss. 2 and 4-7)

NCLM – Six claims

1. **Power and authority**
2. **The influence of morality on law**
3. Interpretation
4. The criticism of law
5. **Principles of legality and justice**
6. Legal validity and resistance to law

(2) and (5) – According to Hart, if this is what the necessary connection of law and morality means, <u>its existence should be conceded</u>

Power and Authority

- For Hart, the coercive power of law presupposes its **accepted authority**
- Accepted authority of a legal system → **internal point of view**

"…**allegiance to the system may be based on many different considerations**: calculations of long-term interest; disinterested interest in others; an unreflecting inherited or traditional attitude; or the mere wish to do as others do. **There is indeed no reason why those who accept the authority of the system should not examine their conscience and decide that, morally, they ought not to accept it, yet for a variety of reasons continue to do so**."

(H.L.A. Hart, *The Concept of Law*, OUP, 1994 [1961], p. 203)

Hart on the existence of a legal system

"There are therefore **two minimum conditions necessary and sufficient for the existence of a legal system**. On the one hand, **those rules of behaviour which are valid according to the system's ultimate criteria of validity** must be generally obeyed, and, on the other hand, **its rules of recognition specifying the criteria of legal validity and its rules of change and adjudication** must be effectively accepted as common public standards of official behaviour by its officials."

H.L.A. Hart, *The Concept of Law* (OUP, 3rd ed, 2012) 109

The influence of morality on law

- According to Hart, legal systems are influenced by the accepted social morality and, also, by wider moral ideals
- "**In some systems**, as in the United States, **the ultimate criteria of legal validity explicitly incorporate principles of justice or substantive moral values**; in other systems, as in England, where there are no formal restrictions on the competence of the supreme legislature, its legislation may yet no less scrupulously conform to justice or morality."

  (H.L.A. Hart, *The Concept of Law*, OUP, 1994 [1961], p. 204)
- "**No 'positivist' could deny that these are facts**, or that the stability of legal systems depends in part upon such types of correspondence with morals." (Ibid.)

Principles of legality and justice

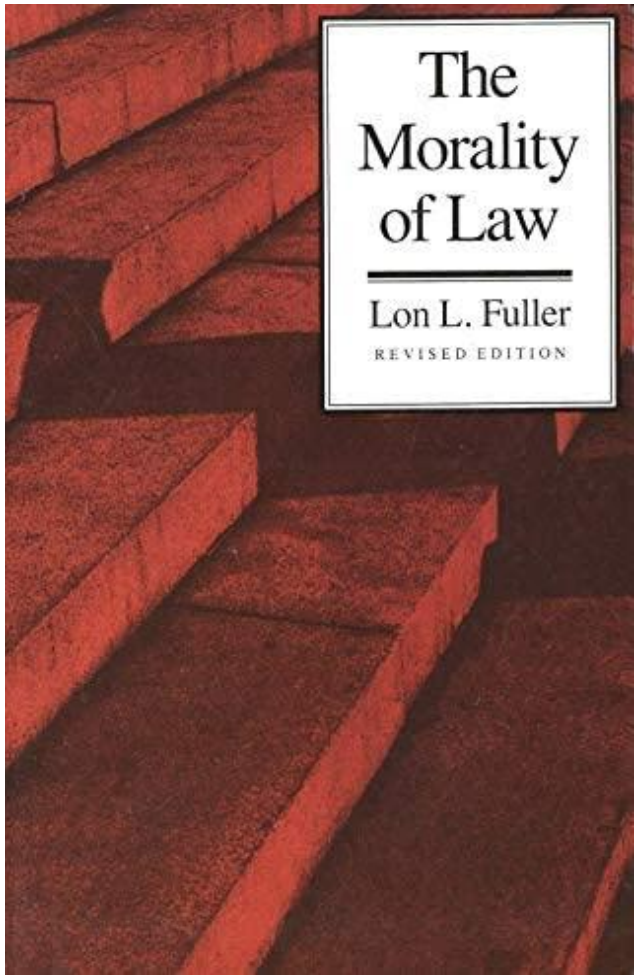
- Perhaps, "…a minimum of justice is necessarily realized whenever human behaviour is controlled by general rules publicly announced and judicially applied."

  (H.L.A. Hart, *The Concept of Law*, OUP, 1994 [1961], p. 206)

- If social control "[…] is to function, the rules must satisfy certain conditions: they must be intelligible and within the capacity of most to obey, and […] they must not be retrospective…" (Ibid., p. 207)

- "…one critic of positivism has seen in these [principles of legality] something amounting to a necessary connection between law and morality, and suggested that they be called 'the inner morality of law'. **Again, if this is what the necessary connection of law and morality means, we may accept it. It is unfortunately compatible with very great iniquity**." (Ibid., p. 207)

Lon Fuller (1902 – 1978)



Carter Chair of Jurisprudence, Harvard University (1948 – 1972)

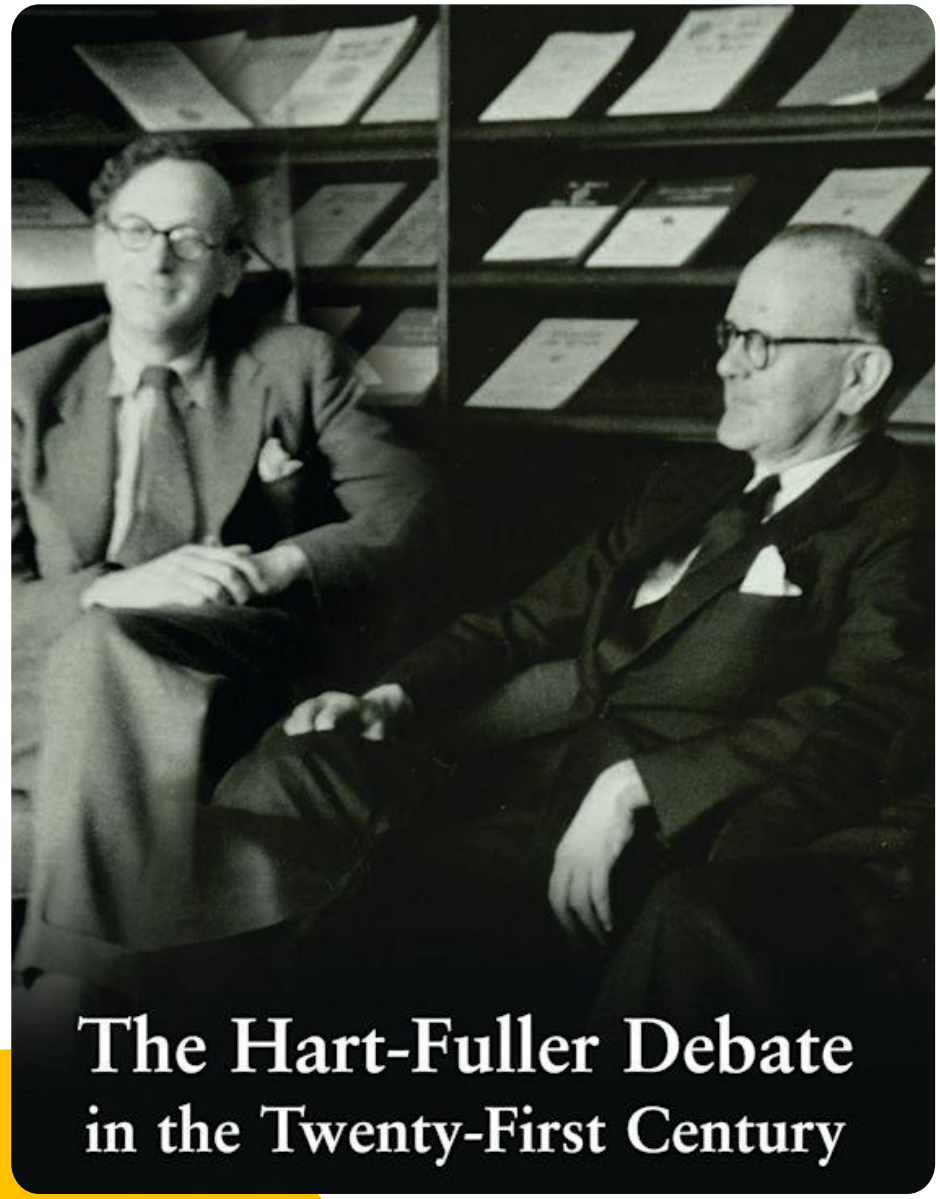
'The Case of the Speluncean Explorers', *Harvard Law Review* (1949)

Problems of Jurisprudence (1949)

The Morality of Law (1964; second edition, 1969)

Legal Fictions (1967)

J. Waldron, "The Rule of Law", *The Stanford Encyclopedia of Philosophy* (Summer 2020 Edition), Edward N. Zalta (ed.), URL = https://plato.stanford.edu/archives/sum2020/entries/rule-of-law/



The Hart-Fuller Debate

- Harvard Law Review, Vol 71, 1958
- H.L.A. Hart (1907 – 1992), 'Positivism and the Separation of Law and Morals'
- Lon Fuller (1902 – 1978), 'Positivism and Fidelity to Law – A Reply to Professor Hart'
- Peter Cane (ed), *The Hart-Fuller Debate in the Twenty-First Century*, Hart Publishing, 2010

Two simple things

"What both Bentham and Austin were anxious to assert were the following two simple things: first, in the absence of an expressed constitutional or legal provision, **it could not follow from the mere fact that a rule violated standards of morality that it was not a rule of law**; and, conversely, **it could not follow from the mere fact that a rule was morally desirable that it was a rule of law**."

(H.L.A. Hart, 'Positivism and the Separation of Law and Morals', *Harvard Law Review*, LXXI, 1958, pp. 599)

Fuller and the ideal of fidelity to law

- **The definition of law**
  - According to Fuller, Hart should "…concern himself more closely with a definition of law that will make meaningful the obligation to fidelity to law." (Fuller, 'Positivism and Fidelity to Law', 635)
- **The morality of law itself**
  - "Most of the issues raised by Professor Hart's essay can be restated in terms of the distinction between order and good order" (Ibid, 644)
  - Fuller's discussion of Hitler's government as a regime where judges were ready to disregard the validly enacted law and state officials were ready "to act through the party in the streets (652)

Fuller's principles of legality

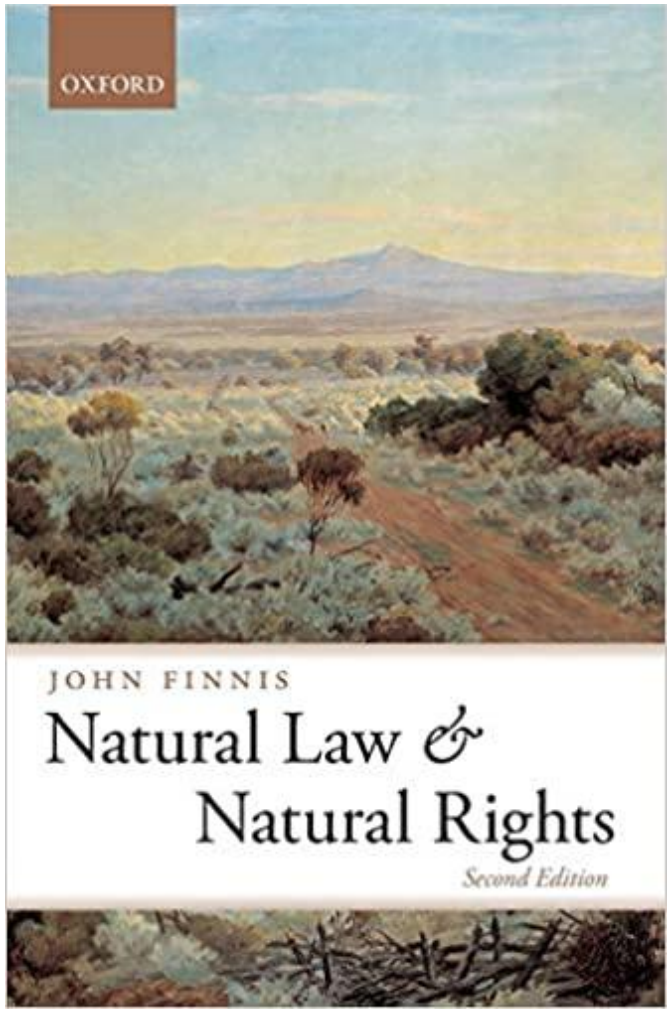
Law is the enterprise of subjecting human conduct to the governance of rules

(See pp. 77-82 of Brian Bix's textbook)

Laws must be:

- General
- Public
- Prospective
- Clear
- Coherent
- Practicable
- Stable
- Finally, there must be congruence between official action and the law

John Finnis and the New Classical Natural Law Theory



- *The idea of judicial power, with special reference to Australian law* (DPhil thesis, University of Oxford, 1965)
- ***Natural Law and Natural Rights*** (OUP, 1980; second edition published by OUP in 2011)
- *Aquinas: Moral, Political, and Legal Theory* (OUP, 1998)
- *The Collected Essays of John Finnis, 5 volumes* (OUP, 2011)
- "Natural Law Theories", *The Stanford Encyclopedia of Philosophy* (Summer 2020 Edition), Edward N. Zalta (ed.), URL = https://plato.stanford.edu/archives/sum2020/entries/natural-law-theories/

Description and evaluation of law

"It is often supposed that **an evaluation of law as a type of social institution**, if it is to be undertaken at all, **must be preceded by a value-free description and analysis of that institution as it exists in fact**. But the development of modern jurisprudence suggests, and reflection on the methodology of any social science confirms, that **no theorist can give a theoretical description and analysis of social facts without also participating in the work of evaluation**, of understanding what is really good for human persons, and what is really required by practical reasonableness."

(J. Finnis, *Natural Law and Natural Rights*, OUP, 2011 [1980], p. 3)

How does the theorist decide what is to count as law for the purposes of their description?

"The noticeably greater explanatory power of later **descriptive analyses of law**, such as those of H. L. A. Hart and Joseph Raz, is to be attributed to their fairly decisive break with the rather naive methodologies of Bentham, Austin, and Kelsen. This sophistication of method has three principal features…"

(J. Finnis, *Natural Law and Natural Rights*, OUP, 2011 [1980], p. 6)

1. Attention to practical point
2. Selection of central case and focal meaning
3. Selection of viewpoint

Hart on the central case of law

"The main theme of this book is that so many of the distinctive operations of the law, and so many of the ideas which constitute the framework of legal thought, require for their elucidation reference to one or both of these **two types of rule** [primary rules of obligation and secondary rules of recognition, change, and adjudication], that **their union may be justly regarded as the 'essence' of law, though they may not always be found together wherever the word 'law' is correctly used**."

H.L.A. Hart, *The Concept of Law* (OUP, 3rd ed, 2012) 155

Central cases and viewpoints

Hart's critique of Austin retains Austin's fundamentally descriptive theoretical purpose – Hart's objection is that Austin's theory "failed to fit the facts"

Descriptive theorists disagree because they disagree on what is *important* and *significant* in the field of data and experience with which they are all equally familiar

By what criteria is one meaning to be accounted focal and another secondary, one state of affairs central and another borderline?

From what viewpoint, and relative to what concerns, are *importance* and *significance* to be assessed?

The central case of the internal point of view

- Hart gives descriptive explanatory priority to the concerns and evaluations – and, consequently, to the language – of the persons that engage with their legal system from the 'internal point of view',
- However, for Hart, the internal point of view is an amalgam of very different viewpoints (see page 203 of *The Concept of Law*)
- For Finnis, Hart should have focused on *the central case of the internal point of view*
- Finnis argues that a theorist cannot identify the central case of the internal point of view unless they consider what the *requirements of practical reasonableness* really are, in relation to the *basic goods* that underpin genuine human flourishing

Finnis on the central case of law

The central case of law and legal system is the law and legal system of a complete community, **purporting to have authority** to provide comprehensive and supreme direction for human behaviour in that community, **and to grant legal validity** to all other normative arrangements affecting the members of that community (see VI.6). Such large claims, advanced by or on behalf of mere human beings, would have no plausibility unless those said to be subject to legal authority had reason to think that compliance with the law and with the directions of its officers would not leave them subject to the assaults and depredations of their enemies, inside or outside the community. **The authority of the law depends, as we shall see at length, on its justice or at least its ability to secure justice**. And in this world, as it is, justice may need to be secured by force; failure to attempt to resist by force the depredations of invaders, pirates, and recalcitrants will normally be a failure in justice. If 'effectiveness' is to be contrasted (as it need not be) with 'justice', **the coercive force of law is not merely a matter of effectiveness**.

(J. Finnis, *Natural Law and Natural Rights*, OUP, 2011 [1980], p. 260)

Finnis on ‘Lex iniusta non est lex’

In this context, the key question is the following: How does injustice affect the obligation to obey the law?

For Finnis, ‘the obligation to obey the law’ may mean:

- empirical liability to be subjected to sanction in event of non-compliance
- legal obligation in the intra-systemic sense (legal obligation ‘in the legal sense’)
- legal obligation in the moral sense
- moral obligation that does not derive from the legality of the stipulation-of-obligation

→ Unjust laws are not laws *in their central case/focal meaning*

Strong/Weak Natural Law Thesis

- *Lex iniusta non est lex* (An unjust law is not a law)
- According to the **Strong Natural Law Thesis**, moral soundness/validity if a necessary element of legal validity

➢ Unjust "laws" are not legally valid

➢ For some theorists (e.g., Gustav Radbruch) only *extremely* unjust "laws" are not legally valid

- According to the **Weak Natural Law Thesis**, unjust "laws" are not laws in the true sense of the word (see John Finnis' theory of law)

➢ Unjust "laws" are morally and *legally* defective

Summary

Legal Positivism vs Natural Law tradition

- *Lex iniusta non est lex*
- Moral obligation to obey the law
- Consider Hart's analysis of the NCLM (pp. 202-212 of *The Concept of Law*)

Substantive vs. Procedural Natural Law Theories

- John Finnis (Law, practical reasonableness, and basic goods)
  - ➢ How does Finnis understand the "central case approach"?
- Lon Fuller (Principles of legality)
  - ➢ What is the moral status of the Rule of Law?

Strong vs. Weak Natural Law Thesis